Agricultural Marketing Authority (Grain, Oil Seeds and Products) (Amendment) Regulations, 2021(No. 1)

IT is hereby notified that the Minister of Lands, Agriculture, Fisheries, Water and Rural Development has, in terms of section 50 of the Agricultural Marketing Authority Act [*Chapter 18:24*], made the following regulations:—

1. These regulations may be cited as the Agricultural Marketing Authority (Grain, Oil Seeds and Products) (Amendment) Regulations, 2021(No. 1).

2. The Agricultural Marketing Authority (Grain, Oil Seeds and Products) Regulations, 2013 (hereinafter referred to as the "principal regulations"), are amended in section 3 ("interpretation")—

(a) by the insertion of the following definitions—

""processor" means a person who in Zimbabwe produces, manufactures or prepares for sale any product from an agricultural product of which he or she is not the producer;

"buyer" means a person who, by himself or his or her agents, carries on the business of buying any agricultural product that is produced in Zimbabwe;

"grower" means a person who, by himself or herself or his or her agents, produces an agricultural product in Zimbabwe;

"producer's association" means an association which is declared in terms of section 7 of the Farmers Licensing and Levy Act [*Chapter 18:10*] to be a producer's association;

(b) in the definition of "contractor" by the insertion after "contract" of "with one or more growers";

(c) in the definition of "Grain or Oil Seeds Contract" by the insertion after "Oil seeds" of "Production";

(d) in the definition of "oilseed product" by the insertion after "from" of "the";

(e) in the definition of "oilseed product" by the insertion after "processing" of "of";

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(f) by the repeal of the definition of "Grain and Oilseed Industry Stakeholder Association".

3. The principal regulations are amended in section 4 ("Grain and Oilseeds Technical Committee") —

(a) by the repeal of subsection (1) and the substitution of —

"(1) There is hereby established a committee of the Board to be known as the Grain and Oil seeds Technical Committee.".

(b) in subsection (2)(c) by the repeal of sub paragraph (xi) and the substitution of —

"(xi) Grain and Oil Seed contractors;

(xii) Stock feed Manufacturers.";

(c) in subsection (3)—

(i) by the deletion of "general";

(ii) by the repeal of "Authority" and the substitution of "Board".

4. The principal regulations are amended in section 5 ("Requirements of registration of buyers, brokers, contractors, processors, traders and or their respective associations")—

(a) in subsection (1)(a) by the insertion after "whether" of "under";

(b) in subsection (1) (d) by the repeal of "industry stakeholder association";

(c) by the repeal of subsection (2) and the substitution of—

"(2) The Authority shall annually at the time of registration determine the minimum input and agronomic support by Contractors for all grain and oilseed crops and all contracts shall provide this minimum package."

(d) by the insertion after subsection (3) of the following subsection—

"(4) Providers of combine harvesting services, transporters and any other services arrangement by a

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grower or contractor shall not "infringe or contravene" the intent of the contract arrangements.".

5. The principal regulations are amended in section 6 ("Registration of buyers, brokers, traders, growers, contractors, and processors and their respective associations")—

(a) in subsection (1)(a) by the insertion after "Authority" of " on or before the 30th of September each year";

(b) by the insertion after subsection (1)(d) of the following paragraphs—

"(e) growers shall register with Authority on or before the 15th of December for summer cropping and 15th of June for winter cropping each year;

(f) contractors and Grain Marketing Board shall register farmers and all unregistered farmers must be registered on or before the 1st of April each year;

(h) transporters of grains and oilseeds shall register with the Authority on or before the 31st of March each year."

(c) in subsection (2) by the repeal of "grain industry stakeholder" and the substitution of "producer's";

(d) by the repeal of subsection (3).

6. The principal regulations are amended in section 7 ("Purchase of contract and non-contract grains and oilseeds")—

(a) by the repeal of subsection (4) and the substitution of —

"(4) A contractor who fails —

(a) to deliver inputs;

(b) to deliver inputs timeously;

(c) to pay the purchase price as agreed in the contract within agreed timeframes;

shall be liable —

(i) for any losses ;

(ii) to compensate the grower for double the amount any monies

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used to purchase inputs by the grower due to failure of contractor to deliver inputs."

(b) by the insertion after subsection (7) of the following subsection—

"(7a) Any grower who contravenes subsection (7), shall be guilty of an offence and liable to a fine not exceeding three times value of the inputs, or in default to imprisonment for a period not exceeding six months or to both such fine and imprisonment."

(c) by the repeal of subsection (8) ;

(d) by the repeal of subsection (9) and the substitution of—

"(9a) No grower shall sell grains and oil seeds to any unregistered contractor."

7. The principal regulations are amended in section 9 (Submission of returns and keeping of records by brokers, buyers, contractors and processors")—

(a) by the insertion of paragraph (a) after subsection 2;

(b) by the insertion after subsection 2(a) of the following subparagraph—

"(b) every contractor shall provide evidence of support extended to growers in the form of signed contracts (to include inputs supplies),proof of inputs purchases, grower's acknowledgement of debt.";

(c) by the insertion after subsection (4) of the following subsection—

"(5) Every registered contractor must submit proof of register of his or her growers and proof that minimum and agronomic package has been availed.".

8. The principal regulations are amended in section 12 ("Offences and penalties") by the insertion after subsection (2) of the following subsection—

"(3) Any person who—

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(a) operates without registration; or

(b) falsifies information; or

(c) fails to submit returns on time; or

(d) fails to give growers adequate inputs within the stipulated time frame; or

(e) fails to submit evidence of support extended to grower; or

(f) fails to give minimum input package per hector; or

(g) contracts a grower already contracted by others; or

(h) purchases grains and oilseeds contracted by others; or

(i) fails to pay agreed purchase price within the agreed time frame; or

(j) misappropriates inputs;

shall be guilty of an offence and liable to a fine not exceeding level four or to imprisonment for a period not exceeding three months or to both such fine and such imprisonment.".

9. The principal regulations are amended on the Second Schedule (Section 6) by the deletion of late registration fees and the substitution of the following:

"SECOND SCHEDULE (*Section 6*)

REGISTRATION FEES

FORM No.	FORM DESCRIPTION	FEES ZWL
AMAG1	Application for registration as Grain Industry Stakeholder Association On late registration	100 000 200 000
AMAG2	Application for registration as a contractor or processor On late registration	100 000 200 000
AMG 3	Application for registration as a buyer, broker or trader On late registration	200 000 400 000

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FORM No.	FORM DESCRIPTION	FEES ZWL
AMAG4	Application for registration as a grower: Communal smallholder irrigation scheme A1 A2 large scale commercial On late registration as a grower: Communal smallholder irrigation scheme A1 A2 large scale commercial	 200 400 1 000 2 000 4 000 400 800 1 000 2 000 8 000
AMAG5	Application for service hammer miller	400
	On late registration	800
AMAG6	Transporter	
	New Registration	30 000
	Renewal	
	On late registration	20 000
	New Registration	60 000
	Renewal	40 000”.

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